



2025:AHC:180221-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 32823 of 2025

Ashok Pathak

.....Petitioner(s)

Versus

State of U.P. and Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Amit Kumar Singh
Counsel for Respondent(s)	:	C.S.C., Chetan Chatterjee

Court No. - 3

HON'BLE SAUMITRA DAYAL SINGH, J.
HON'BLE INDRAJEET SHUKLA, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State and Sri Chetan Chatterjee, learned counsel for the Distribution Corporation.
2. Challenge has been raised to the Recovery Citation dated 24.05.2025 seeking to recover Rs. 3,81,370/- from the petitioner towards electricity dues.
3. Presently, it is not clear if assessment procedure has been fully complied. Petitioner claims no opportunity of hearing was given to him before the impugned demand came to be created.
4. In view of such facts, no useful purpose may be served in keeping such a petition pending or calling for counter affidavit at this stage. To the extent petitioner may not have been given opportunity of hearing, it is desirable that one opportunity is given to the petitioner before the Assessing Officer/respondent No. 2 under Clause 6.8 of the U.P. Electricity Supply Code 2005.
5. Accordingly, writ petition is **disposed of** with a direction, subject to the petitioner depositing Rs. 38,000/- towards the disputed demand within a period of one month, he may file appropriate application before respondent No. 2 within a further period of one week therefrom. Subject to such compliance, respondent No. 2 may proceed to deal with and decide petitioner's objection by a reasoned and speaking order, strictly in accordance with law, after confronting the petitioner with all adverse

material being relied against the petitioner and by giving opportunity of personal hearing as expeditiously as possible, preferably within a period of two months from the date of application being filed by the petitioner.

6. In the event of non-compliance of any part of the order, the recovery shall revive from that stage.

October 9, 2025

Mohit

(Indrajeet Shukla,J.) (Saumitra Dayal Singh,J.)